

Amar Singh v. State of U.P.

Allahabad High Court · Division Bench · 22 February 2019 · Writ-C No. 6372 of 2019 · **Writ disposed; clause 6.5 representation to be decided in one month; recovery stayed.**

HEADNOTE

On a challenge to a recovery citation of Rs 1,65,210 plus charges alleged to rest on an inflated electricity bill, the Division Bench disposed of the writ by relegating the consumer to a representation before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be considered and decided in accordance with law within one month, and stayed coercive recovery for that period.

FACTUAL SUMMARY

Amar Singh filed a writ petition in the Allahabad High Court challenging a recovery citation dated 25 January 2019 demanding Rs 1,65,210 plus other charges. He contended that the citation followed an inflated electricity bill and disputed the bill itself. Counsel for the Electricity Department stated that the petitioner could make a representation to the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. The Court disposed of the petition on that footing with a short stay of coercive action.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-executive-engineer

HOLDING

A consumer who disputes a recovery citation as resting on an inflated electricity bill is to make a representation before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005; if made, that representation shall be considered and decided in accordance with law within one month, and coercive recovery is stayed for that period. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The writ challenging a recovery citation on an alleged inflated bill was disposed of by directing that a representation to the Executive Engineer under clause 6.5, if made, be considered and decided in accordance with law within one month. ¶ 1

clause-6.5-statutory-remedy Counsel for the Electricity Department invoked clause 6.5 as the forum for the billing dispute, and the Court relegated the petitioner to that statutory remedy rather than deciding the bill in writ. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The petitioner's dispute to the bill itself was treated as a matter for the Executive Engineer under clause 6.5, not for merits determination on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CITATION AND ALLEGED INFLATED BILL

The Court did not examine the bill or the recovery demand on merits and relegated the dispute to the Executive Engineer under clause 6.5. ¶ 1